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LINE 7

26-CIV-02132

JESSICA CASTIGLIONE VS INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856

JESSICA FAWN CASTIGLIONE  
INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856LISA L. GYGAX  
SUSAN GAREA

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DEMURRER TO DEFENDANT TEAMSTERS LOCAL 856 TO COMPLAINT OF CASTIGLIONE

**TENTATIVE RULING:**

This is a complaint for damages brought by Plaintiff Jessica Castiglione (plaintiff) in which she complains of “systemic illegal employment practices” committed by defendants International Brotherhood of Teamsters Local 856 (Local 856), International Brotherhood of Teamsters (IBT), Sean O’Brien, Fred Zuckerman, Chris Rosell, Peter Finch, Alex Topete, Wilver Arevalo, and Fuad Osman (collectively, Defendants). (Complaint, filed Mar. 23, 2026, ¶ 2.)

Local 856 now demurs to all seven causes of action in Plaintiff’s complaint. (NODD, filed May 22, 2026.) Local 856 demurs to all claims on the grounds that it was never Plaintiff’s employer and is therefore not a proper defendant to any of Plaintiff’s causes of action. (*Id.* at p. 1:25-26.) Local 856 also demurs to each cause of action individually on separate grounds.

**Legal Standards**

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov’ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code Civ. Proc., § 430.50, subd. (a).) The defect must appear from the face of the pleadings or judicially noticeable facts. (*Blank v. Kirwant* (1985) 39 Cal.3d 311, 318.)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a “demurrer must dispose of an entire cause of action.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) “The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (see Code Civ. Proc., § 452),

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and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

### **Demurrer to all claims based on no alleged employment relationship**

Local 856's demurrer to all claims on the grounds that it is not a proper defendant is OVERRULED.

"A complaint must contain '[a] statement of the facts constituting the cause of action, in ordinary and concise language.' (Code Civ. Proc., § 425.10, subd. (a)(1).) This fact-pleading requirement requires the plaintiff to allege *ultimate* facts that apprise the defendant of the claim's factual basis. (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415, 37 Cal.Rptr.3d 528.) Stated another way, the 'complaint must allege the ultimate facts necessary to the statement of an actionable claim.' (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1390, 272 Cal.Rptr. 387.)" (*Yalung v. State of California* (2023) 98 Cal.App.5th 71, 80, emphasis original.)

" 'Ultimate facts' are those that raise the issues on which the *right to recover* depends—i.e., the essential elements of the cause of action. All the facts that are *material* to the cause of action—i.e., the facts that make a difference to the outcome of the case—must be alleged (*see* ¶ 6:400, 10:230, 10:271). [*Estes v. Eaton Corp.* (2020) 51 CA5th 636, 643, 265 CR3d 202, 208, fn. 2 (quoting text); *Foster v. Sexton* (2021) 61 CA5th 998, 1027, 276 CR3d 172, 197—'distinguishing "ultimate facts" from "evidentiary facts" and "legal conclusions" can be difficult' (citing text); *Thomas v. Regents of Univ. of Calif.* (2023) 97 CA5th 587, 610-611, 315 CR3d 623, 641 (citing text)] [¶] By contrast, allegations of unnecessary detail and generalized argument may be objectionable as 'evidentiary' pleading and 'legal conclusion,' respectively." (Weil & Brown, *Cal. Prac. Guide: Civ. Proc. Before Trial* (TRG June 2026 update) ¶ 6:124, emphasis original.)

"The distinction between 'ultimate facts' and 'evidentiary' matters is of diminishing importance because a complaint will be upheld if it provides the defendant with 'notice of the issues sufficient to enable preparation of a defense.' [*Doe v. City of Los Angeles* (2007) 42 C4th 531, 549-550, 67 CR3d 330, 344] [¶] Thus, plaintiff need only plead such facts as are necessary 'to acquaint a defendant with the *nature, source and extent* of his claims.' [*Doe v. City of Los Angeles*, *supra*, 42 C4th at 550, 67 CR3d at 344 (emphasis added); *Prue v. Brady Co./San Diego, Inc.* (2015) 242 CA4th 1367, 1376, 196 CR3d 68, 75—'a complaint is adequate so long as it apprises the defendant of the factual basis for the claim']" (*Cal. Prac. Guide, supra*, at ¶ 6:128.)

Here, Plaintiff alleges that Local 856 was her employer (Complaint, ¶ 11); that Plaintiff's work for Local 856 required her to travel and convince target employees to unionize their own workplaces (*Id.* at ¶ 13); that both IBT and Local 856 directed Field Organizers and ordered Field Organizers' work schedule (*Id.* at ¶ 19); that Local 856 collected union dues and retirement fees (*Ibid*); that both IBT and Local 856 supervised Plaintiff (*Id.* at ¶ 24); and that both IBT and Local 856 were responsible for adhering to requirements with respect to Plaintiff and aggrieved employees such as paying overtime, providing meal and rest breaks, etc. (*Id.* at ¶ 26.)

Plaintiff also alleges repeatedly that IBT and Local 856 “blur[red] the line as to who is the employer” (*Id.* at ¶¶ 13, 19, 24) and that the two entities “would never clearly answer plaintiff’s question of who her official employer actually was until after she was terminated.” (*Id.* at ¶ 25.) Plaintiff alleges that the two entities had “a unity of interest and goals along with of [sic] the orchestrated conduct between the two agencies is a conspiracy to control workers, deny rights,” etc., (*Id.* at ¶ 13) and that they “are both liable employers in the same manner as any temp agency contracting a worker, supervised by the work provider.” (*Id.* at ¶ 26.) Plaintiff includes numerous allegations in her individual causes of action referring to the violations committed by “Defendants.”

Plaintiff has alleged sufficient facts to establish an employment relationship in general. Her allegations go beyond a conclusory statement because she alleges that Local 856 directed her and ordered her work schedule, was responsible for her wage deductions, and supervised her. Additionally, Plaintiff notes in the Complaint and in her opposition that she believes IBT and Local 856 were acting in concert and that some information about her employment status was withheld from her which may be further revealed through discovery. These allegations are sufficient to withstand a general demurrer. (see *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451.)

Local 856’s arguments on this issue focus on the definition of employment in the context of Labor Code violations. Under *Martinez v. Combs* (2010) 49 Cal.4th 35, 64, there are multiple definitions of employment: “To employ, then, under the IWC’s definition, has three alternative definitions. It means: (a) to exercise control over the wages, hours or working conditions, *or* (b) to suffer or permit to work, *or* (c) to engage, thereby creating a common law employment relationship.” Plaintiff has sufficiently alleged an employment relationship according to this definition based on the allegations described above.

### **First cause of action – Promissory Fraud**

Local 856’s demurrer to the first cause of action is SUSTAINED, with leave to amend.

Local 856 raises two grounds for demurring to the first cause of action: ERISA preemption and failure to meet heightened pleading requirements. (MPA, p. 9:16-17.)

First, Local 856 argues that Plaintiff alleges damages based on loss of funds in the form of deductions for union dues and retirement contributions, but that litigation of retirement contributions is governed by ERISA and therefore preempted from state court litigation. (*Id.* at p. 9:18-20.) However, since a general demurrer cannot be brought to only a part of a cause of action (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948), this ground fails because it does not dispose of the entire cause of action. Plaintiff’s first cause of action alleges in part that she was “originally led to believe she was joining and working for the LOCAL IBT union, made to pay dues but was excluded from the union membership she was forced to pay for and not protected from the very harms that the Teamster union protects employee members

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from.” (Complaint, ¶ 40.) Because the cause of action is premised on more than the pension plan claims, ERISA preemption cannot be grounds for sustaining the demurrer.

Second, Local 856 also argues that Plaintiff’s fraud allegations fail to meet the heightened pleading standards for a fraud claim. The law does require specificity in pleading fraud, but the heightened pleading standard for fraud “is relaxed when the allegations indicate that the defendant must necessarily possess full information concerning the facts of the controversy” or “when the facts lie more in the knowledge of the opposite party” (*Tarmann v. State Farm Mutual Auto-Mobile Ins. Co.* (1992) 2 Cal.App.4th 153, 158 (cleaned up; *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216–217.) However, even with a liberal reading of the complaint, it is deficient to plead fraud.

Local 856 it is not an individual who would be expected to know what he or she said, but a union. Plaintiff does not provide specificity about who made these representations although they were made directly to her. For example, Plaintiff alleges that during the intake process, she “was informed” she would be paying dues and would receive certain benefits including retirement benefits, and that “[b]ased on the statements of the IBT intake staff and that they were taking unions dues out of her paychecks,” Plaintiff believed she would be a union member. (Complaint, ¶¶ 9, 12.) Plaintiff fails to affirmatively allege that a staff member of either Local 856 or IBT or any other defendant made a statement with the intent to defraud Plaintiff or what that statement was.

With regard to the union dues in particular, Plaintiff does not allege that anyone told her she would be a union member or that she would receive particular benefits from paying union dues. She only alleges that she was told she would be paying dues, that those dues were taken out of her paycheck, and that she was not a union member. (See Complaint, ¶¶ 9, 12, 16, 21, 22, 28.)

With regard to the retirement benefits, Plaintiff does not allege that she was told she would receive retirement benefits which would vest immediately. She only alleges that she was told she would receive retirement benefits. Plaintiff later alleges that “Plaintiff was told . . . that the deductions for retirement would vest when they were made staff, a label they used but that a minuscule number of union organizers ever obtain.” (Complaint, ¶ 41.) It is unclear who Plaintiff is alleging “told” her this, but if she is referring to Local 856 or IBT, she has contradicted her earlier allegations.

### **National Labor Relations Act preemption**

Local 856’s demurrers to the second cause of action for retaliation in violation of public policy, third cause of action for wrongful termination, and fourth cause of action for unfair competition are SUSTAINED, without leave to amend.

Although leave to amend is routinely granted, it is proper to deny amendment when the complaint shows on its face that it is incapable of being amended. *California Practice Guide: Civil Procedure Before Trial* §7:129.1 (TRG June 2026 update). If Plaintiff seeks leave to amend this cause of action, she should contest the tentative and appear at the hearing (via

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personal appearance or Zoom to provide facts that provide a reasonable possibility that he can state a cause of action.

Local 856 argues that these causes of action are preempted by the National Labor Relations Act (NLRA) and the Court agrees.

“The NLRA does not contain express preemption provisions, but the Supreme Court held that ‘two categories of state action are implicitly preempted: (1) laws that regulate conduct that is either protected or prohibited by the NLRA (*Garmon* preemption), and (2) laws that regulate in an area Congress intended to leave unregulated or “controlled by the free play of economic forces” (*Machinists* preemption).’ *Interpipe Contracting, Inc. v. Becerra*, 898 F.3d 879, 887 (9th Cir. 2018) (quoting *Chamber of Com. of the U.S. v. Brown*, 554 U.S. 60, 65, 128 S.Ct. 2408, 171 L.Ed.2d 264 (2008)).” (*Moreno v. UtiliQuest, LLC* (9th Cir. 2022) 29 F.4th 567, 573 (*Moreno*).)

Here, Local 856 asserts *Garmon* preemption based on the following section of the NLRA:

Employees shall have the right to self-organization, to form, join, or assist labor organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection, and shall also have the right to refrain from any or all of such activities except to the extent that such right may be affected by an agreement requiring membership in a labor organization as a condition of employment as authorized in section 158(a)(3) of this title.

(29 U.S.C. § 157.)

Plaintiff alleges as to her second cause of action that she was retaliated against for organizing Field and Staff Organizers to “work towards having Union representation and union membership and benefits” (Complaint, ¶ 54), for questioning the deduction of union dues without union membership (*Id.* at ¶ 57), for not voluntarily contributing to persons running for union office or to the Democratic Republican Independent Voter Education Fund (*Id.* at ¶ 58), and for “requesting that the LOCAL IBT and the parent company paying and directing their work follow California law and other concerns including wages, safety, proper meals when traveling, proper breaks, and other concerns.” (*Id.* at ¶ 60.)

Plaintiff alleges that “IBT staff managers expressed anger” in response to some of the above activities. (*Id.* at ¶¶ 57-58.) She also alleges that “[t]he retaliation consisted of less safe work assignments, longer work days, assignments off the clock, denial of vacation time, denial of equal days off, and threats that included being fired.” (*Id.* at ¶ 61.) She further alleges that “she was retaliated against with threats and eventually fired in retaliation for engaging in union organizing.” (*Id.* at ¶ 62.)

Plaintiff alleges as to her third cause of action that “Plaintiff sought representation for her and her cohorts on her own time,” and that she “complained about unsafe working conditions, and she complained about other problems and improper conduct, unequal pay, and or unlawful practices

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of the defendants and incidents.” (Complaint, ¶¶ 66-67.) She alleges that “[n]ot long after the unionizing vote ended . . . plaintiff was terminated.” (*Id.* at ¶ 68.)

Plaintiff alleges as to her fourth cause of action that IBT staff “told plaintiff that she violated policy so as to make her a pariah and prevent her from obtaining similar work at other unions.” (Complaint at ¶ 74.) Plaintiff also alleges that staff managers and supervisors told Plaintiff’s colleagues not to associate with her or they would face the same consequences, and others were told that Plaintiff and IBT had come to an agreement, such that Plaintiff was perceived as selfish. (*Id.* at ¶ 75.) Plaintiff alleges that these actions by Defendants violate BPC § 17200 “since it disadvantages other unions who compete in the workplace with the IBT.” (*Id.* at ¶ 77.)

Plaintiff’s second and third causes of action fall squarely within the National Labor Relations Board’s (NLRB) jurisdiction over the right to form labor organizations and to engage in concerted activities for the purpose of collective bargaining or other mutual aid or protection. Plaintiff’s allegations in the fourth cause of action are somewhat unclear but also appear to be based on Defendants having retaliated against Plaintiff for her organizing activities. Therefore, they also fall within the NLRB’s jurisdiction under 29 U.S.C. § 157.

As stated in *Moreno, supra*, 29 F.4th at p. 575: “Moreno’s central theory in his whistleblowing retaliation and wrongful termination claims is that he was terminated for advocating on behalf of his fellow employees after UtiliQuest refused to give them a promised raise. In *Bassette*, we held that an employee’s wrongful termination claim against her employer was preempted because the employer’s alleged conduct arguably violated the NLRA. 25 F.3d at 761. The same reasoning applies in this case because UtiliQuest’s conduct arguably violated the NLRA. Thus, there is clear potential for conflict between state law and federal policy.”

This finding is further supported Plaintiff’s allegations in her Complaint that “Plaintiff also made a complaint to the National Labor Relations Board. The process was feudal [sic] and the plaintiff on information and belief herein alleges that the IBT never settles with their own former Union Field Organizers.” (Complaint, ¶ 9.) Plaintiff also states that “Plaintiff has timely exhausted her administrative remedies and timey [sic] filed these causes of action and the plaintiff possesses a right to sue letter from the California Civil Rights Division and also an email from The National Labor Relations Board.” (*Id.* at ¶ 10.)

*Moreno, supra*, 29 F.4th at p. 576 states: “In determining whether adjudicating a state claim risks interference with the NLRB’s jurisdiction, we inquire whether ‘the controversy presented to the state court is identical with that which could be presented to the Board.’ *Belknap, Inc. v. Hale*, 463 U.S. 491, 510, 103 S.Ct. 3172, 77 L.Ed.2d 798 (1983). When controversies are identical, ‘a state court’s exercise of jurisdiction necessarily involves a risk of interference with the unfair labor practice jurisdiction of the Board.’ *Sears, Roebuck & Co.*, 436 U.S. at 197, 98 S.Ct. 1745. Importantly, the *claims* need not be identical, but rather the focus is on whether the ‘controversy presented’ is identical. A finding of *Garmon* preemption does not require ‘that a plaintiff have a certain remedy before the Board, or even that the Board will hear the claim in the first place.’ *Bassette*, 25 F.3d at 759–60.”

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Therefore, the demurrer to the second, third, and fourth cause of action by Local 856 is sustained.

**Fifth cause of action - PAGA**

Local 856's demurrer to the fifth cause of action is SUSTAINED, with leave to amend.

Local 856 argues that Plaintiff's PAGA (Private Attorney General Act) claim fails because Local 856 was not her employer. (MPA, p. 13:17-23.) As discussed above, the Court has found that Plaintiff adequately alleged an employment relationship with Local 856. Therefore, the demurrer fails on this ground.

Local 856 also argues that Plaintiff failed to plead that she met the requirements for filing a PAGA claim, specifically, giving notice to her employer and the Labor and Workforce Development Agency. (MPA at pp. 13:24-14:10; citing Lab. Code § 2699.3.)

Lastly, Local 856 argues that Plaintiff's minimum wage, overtime, and meal and rest break claims fail because they are not alleged with sufficient particularity, and that the timely wage and wage statement claims fail because they are derivative. (MPA, p. 14:5-7.) Local 856 also argues that the claim for business expense reimbursement is not pled with any facts as to Local 856. (Id. at p. 14:7-8.)

Plaintiff has failed to allege compliance with Labor Code requirements for her PAGA claim and the demurrer is sustained on this ground. Labor Code section 2699.3 provides that "[t]he aggrieved employee or representative shall give written notice by online filing with the Labor and Workforce Development Agency and by certified mail to the employer of the specific provisions of this code alleged to have been violated, including the facts and theories to support the alleged violation." Plaintiff does not state anywhere in her Complaint that she complied with this requirement. In her opposition, she appears to confuse the Labor and Workforce Development Agency with the California Civil Rights Division, a different agency because she states that she filed an administrative action asserting a PAGA claim with the California Civil Rights Division and received a right to sue letter. Plaintiff has not provided any authority that this is sufficient to comply with PAGA pre-filing requirements, nor does this Court believe there is authority to that effect. Labor Code section 2699.3 specifically requires notice to the Labor and Workforce Development Agency, which has a database with all PAGA cases filed.

**Sixth cause of action – Equal Pay Violation**

Local 856's demurrer to this cause of action is SUSTAINED, with leave to amend.

Plaintiff alleges the following in support of her Equal Pay Violation cause of action:

- "The defendants promoted and paid men more than plaintiff who had less qualifications, some less experience, and less success. Plaintiff was directed by defendants to train and teach the IBT organizing method to some of these men." (Complaint, ¶ 105);
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- “As a result of the advancement of men with less time on the job who were less successful as organizers, plaintiff suffered emotional stress, ageist, humiliation and extreme frustration by the gender-based pay discrimination.” (*Id.* at ¶ 106)

This is insufficient to allege the cause of action. Plaintiff does not allege a statutory basis for this claim. *Allen v. Staples, Inc.* (2022) 84 Cal. App. 5th 188, lays out the statutory scheme for California equal pay violations:

“Section 1197.5 is California's equal pay law. Its operative subsection states: ‘No employer shall pay any individual in the employer's employ at wage rates less than the rates paid to employees of the opposite sex in the same establishment for equal work on jobs the performance of which requires equal skill, effort, and responsibility, and which are performed under similar working conditions, except where the payment is made pursuant to a seniority system, a merit system, a system which measures earnings by quantity or quality of production, or a differential based on any bona fide factor other than sex.’ (§ 1197.5, subd. (a).)” (*Green v. Par Pools, Inc.* (2003) 111 Cal.App.4th 620, 622–623, 3 Cal.Rptr.3d 844.)

(*Allen*, 84 Cal.App.5th at pp. 193-194.) Plaintiff has failed to allege facts that the promotions were based on gender rather than any other potential factor or that the men who were promoted were performing substantially similar work to Plaintiff under substantially similar conditions.

### **Seventh cause of action – Sexual Harassment**

Local 856’s demurrer to this cause of action is SUSTAINED, with leave to amend.

Plaintiff again fails to allege a statutory basis for this cause of action. Sexual harassment claims in California are governed by the Fair Employment and Housing Act (FEHA) but can be interpreted with reference to federal standards. (*Kelley v. The Conco Companies* (2011) 196 Cal.App.4th 191, 202, n. 7 (*Kelley*).) *Kelley* defined the elements of a state sexual harassment claim as follows:

FEHA’s “ ‘prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex.’ [Citation.]” (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 277, 42 Cal.Rptr.3d 2, 132 P.3d 211 (*Lyle* ).) Claims of a hostile or abusive working environment due to sexual harassment arise when a workplace is “permeated with ‘discriminatory intimidation, ridicule, and insult[ ]’ [citation] that is ‘sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment[ ]’ [citation]....” (*Harris v. Forklift Systems, Inc.* (1993) 510 U.S. 17, 21, 114 S.Ct. 367, 126 L.Ed.2d 295.)

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“The elements of such a cause of action are: ‘(1) plaintiff belongs to a protected group; (2) plaintiff was subject to unwelcome sexual harassment; (3) the harassment complained of was based on sex; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior.’ [Citation.]” (*Jones v. Department of Corrections & Rehabilitation* (2007) 152 Cal.App.4th 1367, 1377, 62 Cal.Rptr.3d 200.)

(*Kelley* at 202, footnotes omitted.) The U.S. Supreme Court held under 42 U.S.C. § 2000e *et seq.* that “[a]n employer is negligent with respect to sexual harassment if it knew or should have known about the conduct and failed to stop it.” (*Burlington Indus., Inc. v. Ellerth* (1998) 524 U.S. 742, 759.)

Plaintiff has failed to meet the pleading standard of putting Local 856 on notice of the claims it must defend against. Plaintiff alleges harassment by “co-workers and supervisors,” but then refers to “certain male workers,” “the man,” “all the male workers,” and “the male worker.” (See Complaint, ¶¶ 110, 111, 112, 116, 120.) The allegations appear to conflate several incidents of harassment and leave unclear who allegedly did what to Plaintiff. Plaintiff also alleges that “the employer” did not investigate or make a report about the alleged incidents, but it is unclear who “the employer” is. As found earlier in this ruling, Plaintiff properly alleged joint employer allegations against IBT and Local 856, so she must either do the same here or identify which of the two was responsible for this cause of action.

Plaintiff has ten (10) days from service of written notice of entry of order to file and serve a First Amended Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Local 856 shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 8

26-UDL-00978

EVGENY VLASOV VS. DEFENDANT

EVGENY VLASOV  
DEFENDANTPRO SE  
PRO SE

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DEMURRER

**TENTATIVE RULING:**

The defendant demurrer to plaintiff's complaint is **OVERRULED**, as follows:

A party who is not represented by counsel may consent to electronic service. (Code Civ. Proc. section 1010.6, subd. (c)(2)-(3).) Self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." (Cal. Rules of Court, rule 2.251(c)(3)(B).) Defendant's proof of service of the demurrer indicates that it was served only electronically on plaintiff, who is self-represented. There is no evidence that plaintiff has consented to electronic service. Therefore, plaintiff did not receive proper notice of the hearing. (*Id.*, rule 3.1110(b)(1); Code Civ. Proc., § 1014). Thus, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

However, even if the merits of the demurrer were to be reached, it is unsupported and so would be overruled.

"A demurrer shall distinctly specify the grounds upon which any of the objections to the complaint... are taken. Unless it does so, it may be disregarded." (Code Civ. Proc, § 430.60.) A party asserting a demurrer must provide an adequate memorandum of points and authorities supporting the challenges which are raised in the demurrer, and in the case of a general demurrer all grounds not supported in such a memorandum are waived. (Cal. Rules of Court, rule 3.1113(a), (b).)

Here, defendant's demurrer states only that "[t]he Complaint fails to state facts sufficient to constitute a cause of action (CCP § 430.10(e))." This states an objection to the complaint but does not specify the grounds upon which that objection is taken. No supporting memorandum of points and authorities has been filed.

If the court were to reach the merits of Defendant's unsupported Demurrer, it would accordingly be **OVERRULED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant

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to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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